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April 14, 2026

ENGROSSED HOUSE
BILL NO. 3419

By: Strom, West (Josh), Archer,
Crosswhite Hader,
Dobrinski, Stinson, Fugate,
Kendrix, Kelley, McCane,
Chapman, Wolfley, Stark,
Staires, and Menz of the
House

and

Stewart of the Senate

An Act relating to crimes and punishments; amending Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp. 2025, Section 365), which relates to the corrupt use of nonpublic information; prohibiting current or former officers, employees, or contractors of a political subdivision from corrupt use of nonpublic information; clarifying that violation shall be grounds for termination from government employment; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 336, O.S.L.
2025 (21 O.S. Supp. 2025, Section 365), is amended to read as
follows:

Section 365. A. Any current or former officer, employee, or contractor of a state agency or political subdivision who obtains or

1 obtained nonpublic information because of his or her government
2 employment, government office, or contract with a state agency or
3 political subdivision, and who corruptly, as defined by Section 94
4 of Title 21 of the Oklahoma Statutes:

5 1. Uses such information for personal gain or benefit;

6 2. Acquires or divests a pecuniary interest in any property,
7 transaction, or enterprise which may be affected by such
8 information;

9 3. Speculates or wagers on the basis of such information;

10 4. Uses such information in a way that would affect any
11 personal pecuniary interest, including an interest held by an
12 immediate family member, or business entity with which the immediate
13 family member is associated;

14 5. Discloses such information to any person, group, entity, or
15 others not entitled to receive such information; or

16 6. Aids another to commit any act set forth in paragraphs 1
17 through 5 of this subsection,

18 shall, upon conviction, be guilty of a felony punishable by a fine
19 not to exceed Ten Thousand Dollars (\$10,000.00), by imprisonment in
20 the custody of the Department of Corrections for a term not to

21 exceed five (5) years, or by both such fine and imprisonment. Any

22 person convicted of violating any provision of this section shall be

23 prohibited from holding any public office in this state and shall be

1 prohibited from entering into any ~~state~~ contract with a state agency
2 or political subdivision.

3 B. Violation of any provision of this section shall be grounds
4 for removal from office or termination from ~~state~~ government
5 employment.

6 C. For purposes of this section, the term "immediate family
7 member" means:

- 8 1. A spouse;
- 9 2. A spouse's parents;
- 10 3. A child by birth or adoption;
- 11 4. A stepchild;
- 12 5. A parent;
- 13 6. A grandparent;
- 14 7. A grandchild;
- 15 8. A sibling;
- 16 9. A spouse's siblings; or
- 17 10. A spouse of any immediate family member listed in this
18 subsection.

19 SECTION 2. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
21 April 14, 2026 - DO PASS
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